

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, JUNE 23, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, June 23, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Monday, June 22, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard at 8:30 a.m. in **Department 42**, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. M-CV-0081949 Brewer Road Partners v. Storer, Jeremiah M

This tentative ruling is issued by the Honorable Colleen M. Nichols. If oral argument is requested, it will be heard on **Thursday, June 25, 2026 at 11:00 a.m. in Department 33**.

Motion to Vacate or Set Aside Void Judgment

Defendant and judgment debtor David Taylor moves for an order setting aside the June 8, 2023 judgment. Defendant argues the judgment was procured by fraud and various statutory and constitutional violations and cannot stand. Defendant specifically argues the trial court denied him his right to a jury trial, that plaintiff misrepresented facts pertaining to the partnership, and that plaintiff refused to engage in discovery.

Preliminarily, on June 2, 2026, defendant filed a document that includes an objection to this court hearing this motion because the judge is retired and because of a conflict. This judge sits by assignment under the Temporary Assigned Judges Program as assigned by the Chief Justice in their authority "to expedite judicial business and to equalize the work of the judges." (Article VI, sec. 6(e).) As to the allegation of conflict, post-trial motions are assigned to the trial judge when the trial judge is available.

This motion was filed with insufficient notice. All moving papers and supporting papers shall be served and filed at least 16 court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) Notice is extended when service is by electronic means, as it was here. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).) As defendant filed his moving papers on May 15, 2026 for a hearing initially scheduled for June 2, 2026, defendant provided a mere 11 court days' notice. This court's decision to continue the hearing to June 23, 2026 for scheduling purposes does not cure this issue and the motion is procedurally deficient.

Defendant's request for judicial notice is granted as to Exhibit B in its entirety and Exhibit F to the extent the document is a filed court record. However, the court does not take judicial notice of the arguments or information declared therein. The request for judicial notice is denied as to Exhibits A and E, because defendant did not provide a copy of these documents with its request. The request for judicial notice is denied as to Exhibits C and D because they are not judicially noticeable documents. (Evid. Code, §§ 451, 452.)

Substantively, the motion lacks merit. The same arguments defendant raises today have already been considered by this court for prior motions and by the Appellate Division. While defendant acknowledges in his briefing that the Appellate Division affirmed his appeal, and the Third District Court of Appeal declined extraordinary relief, and the California Supreme Court dismissed review of the matter, defendant does not acknowledge that this means the June 8, 2023 judgment is final. The only relief available at this stage of the proceedings is pursuant to Code of Civil Procedure section 473(d), as the court may at any time set aside a void judgment. However, that defendant disagrees with the decisions of this court and the Appellate division does not constitute a void judgment. Defendant fails to show the judgment is void. The court also observes the instant motion lacks any legal basis or justification and is frivolous as defined in Code of Civil Procedure section 128.5(b)(2). The motion is denied.

Defendant is on notice the court intends to summarily deny any similar future motions as the judgment is long since final and all possible avenues for review have been exhausted.

2. M-CV-0093201 All In Credit Union v. Paletta, Jason Raymond

The motion is dropped from calendar as no moving papers were filed with the court.

3. M-CV-0093623 Sunbelt Rentals v. Timothy P Hansen

Defendants' motion to set aside default

On January 12, 2026, defendants Timothy P. Hansen, individually and as trustee of the Timothy P. Hansen and Cheryl L. Hansen revocable trust dated 08/10/2021; Cheryl L. Hansen, individually and as trustee of the Timothy P. Hansen and Cheryl L. Hansen revocable trust dated 08/10/2021 filed a motion to set aside the default entered on November 19, 2025, pursuant to Code of Civil Procedure sections Code of Civil Procedure § 473(b).

On June 2, 2026, the court adopted a tentative ruling to continue this matter for defendants to serve this motion on defendant Diego Ibarra. Although defendants noticed the continued hearing, defendants attempted to serve defendant Diego Ibarra by electronic service (email) when defendant Ibarra, who appears pro per, has not expressly consented to electronic service (email). (Code Civ. Proc., § 1010.6, subd. (c).)

Therefore, the motion is supported by insufficient notice. All moving papers and supporting documents shall be served and filed at least 16 court days before the hearing. (Code Civ. Proc., § 1005 (b).) This timeline is extended depending upon the method of service. (See generally *id.*) The court continues the motion to set aside default to **August 11, 2026, at 8:30 a.m. in Department 32**. Moving defendants are directed to properly serve this motion on defendant Diego Ibarra, file and serve on all parties a notice of continued hearing including this order, and file proofs of service by July 1, 2026.

4. M-CV-0095253 Capital One v. Hafeez, Ashley

Defendant's demurrer to plaintiff's complaint and defendant's motion to quash

Demurrer to Complaint

Defendant demurs to plaintiff's complaint filed December 5, 2025, which alleges a single cause of action for breach of contract and seeks damages in the amount of \$4,560.71.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action or where the pleading is uncertain. (Code Civ. Proc., § 430.10 (e), (f).) A pleading is "uncertain" if it is ambiguous and unintelligible. (*Id.* at (f).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

"The elements of a breach of contract claim are that a contract was formed; that the plaintiff did everything required by the contract; that the defendant did not do something required by the contract; and that the plaintiff was harmed as a result." (*CSAA Ins. Exch. v. Hodroj*, 72 Cal. App. 5th 272, 276 (2021).) Here, plaintiff adequately alleges all requisite elements of a breach of contract claim in that plaintiff alleges (1) the parties entered into a written contract on or about January 17, 2014, with a copy of the agreement attached as Exhibit A; (2) defendant breached the agreement on or about January 16, 2025, by "fail[ing] to make payments on the contract as agreed, and despite plaintiff's demand, defendant continues to refuse to pay plaintiff the amount owed under the contract. Defendant is in default and plaintiff is entitled to the unpaid balance"; (3)

plaintiff has performed all obligations except those excused or prevented from performance; and (4) plaintiff has suffered damages in the amount of \$4,560.71, the unpaid balance owed at the time of defendant's default. (Complaint, BC-1 – BC-4.) These statements are sufficient to plead the elements of a breach of contract cause of action in California. (See *Hodroj* at 276.)

Defendant asserts there is some defect in the pleading related to plaintiff's change in corporate structure identified in paragraph 9. "On October 1, 2022, Capital One Bank (USA), N.A. became Capital One, N.A., successor by merger." The new entity created by the merger assumed all rights and obligations of the previous entity and defendant presents no authority for a contrary position. Defendant fails to demonstrate any defect in the pleading based on this allegation.

Defendant's demurrer is overruled.

Motion to Quash

Defendant moves to quash service of summons on the grounds that plaintiff lacks standing to bring this action. Defendant also argues the complaint should be dismissed based on the failure to join an indispensable party.

Legal Standard

CCP § 418.10 authorizes quashing a summons based on invalid service, delay in prosecution under CCP § 583.110 et seq., or on grounds of inconvenient forum. A motion to quash is not the proper means to substantively challenge the claim or the plaintiff's right to pursue it. CCP § 418.10. Here, the legal authorities provided in defendant's motion do not support the requested relief and her assertions about plaintiff's ability to prove its claims are inapplicable at this stage of the proceedings. CCP §§ 418.10; 583.110 et seq.

Defendant's motion to quash is denied. Defendant shall file and serve her answer to the complaint within 15 days of service of notice of entry of order.

5. M-CV-0096555 Sansom, James v. Chiang, Jennifer

Demurrer to the Second Amended Complaint ("SAC")

Defendants demur to the SAC in this unlawful detainer action. A party may demur where the pleading does not state facts sufficient to constitute a cause of action or where the pleading is uncertain. (Code Civ. Proc., § 430.10, subds. (e), (f).) A pleading is "uncertain" if it is ambiguous and unintelligible. (*Id.* at subd. (f).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.)

However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

The court has carefully reviewed the SAC and the exhibits thereto. The court finds the SAC alleges facts sufficient to support a cause of action for unlawful detainer. The demurrer to the SAC is overruled.

Defendants shall file and serve an answer by June 29, 2026.

6. S-CV-0027191 Squaw Creek Condominium Assoc. v. Squaw Creek Assocs.

The motion is dropped in light of the moving party's request to remove from calendar filed with the court on June 17, 2026.

7. S-CV-0046091 Bakos, Matthew C vs. Roach, William

Motion for Leave to File a First Amended Complaint ("FAC")

Plaintiff moves to amend his initial complaint to add four additional causes of action.

Defendant's opposition was filed and served on June 16, 2026, providing a mere four court days' notice rather than the required nine court days' notice. (Code Civ. Proc., § 1005, subd. (b).) Defendant provides no explanation for the untimely filing. Plaintiff objects to the untimely opposition. The court sustains the objection and does not consider the untimely opposition.

The court may permit a party to amend a pleading in the furtherance of justice and on such terms as may be just. (Code Civ. Proc., §§ 473, subd. (a)(1), 576.) Leave to amend is generally exercised liberally provided there is no showing of prejudice to the opposing party. (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428; *Douglas v. Superior Court* (1989) 215 Cal.App.3d 155, 158.) Despite the policy of liberally allowing amendments, whether to grant or deny an amendment is nonetheless "largely within the sound discretion of the trial court" and "its exercise will not be disturbed in the absence of a showing of gross abuse." (*Jew Fun Him v. Occidental Life Ins. Co.* (1948) 88 Cal.App.2d 246, 249.) Denial is not an abuse of discretion where the complaint would not have been sufficient to state a cause of action if the proposed amendments had been allowed. (*Stiebel v. Roberts* (1941) 42 Cal.App.2d 434.)

The motion is granted. (Code Civ. Proc., § 473, subd. (a)(1).) Plaintiff shall file and serve his first amended complaint by July 6, 2026.

8. S-CV-0050671 Bente, Jennifer v. Granite Wellness Centers

Motion for Final Approval

The unopposed motion is granted. The court has broad discretion to determine whether a class action settlement is fair, adequate, and reasonable. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.) When reviewing the fairness of the settlement, the court is to give due regard to the parties' agreement, ensuring that the agreement is not a product of fraud, overreaching parties, or collusion and that the settlement, as a whole, is fair, reasonable, and adequate. (*7-Eleven Owners for Fair Franchising v. Southland Corp.* (2000) 85 Cal.App.4th 1135, 1145.) A presumption of fairness exists where: (1) the settlement was reached through arms-length bargaining; (2) the investigation and discovery were sufficient to allow class counsel and the court to act intelligently; (3) class counsel is experienced in similar litigation; and (4) there is a small percentage of objectors. (*Ibid.*)

The court has carefully reviewed and considered the class action settlement agreement and plaintiff's moving papers and declarations submitted in support thereof, including the supplemental declarations of Tim Perng filed April 6, 2026 and May 27, 2026. The court determines a sufficient showing has been made that the settlement, the attorneys' fees, costs, and the service award is fair, adequate, and reasonable.

The court grants final approval of the class action settlement and approves the attorneys' fees in the amount of \$241,425, costs in the amount of \$13,100.95, service awards of \$2,000 for each of the five plaintiffs for a total of \$10,000, and \$74,098.15 in settlement administration costs.

The court retains jurisdiction over the parties to enforce the terms of the judgment. (Cal. Rules of Court, rule 3.769, subd. (h).)

The court schedules this matter for a final accounting hearing on **November 17, 2026 at 8:30 a.m. in Department 32**. Plaintiff shall file and serve a final accounting status report by no later than November 3, 2026.

Motion for Attorneys' Fees, Costs, and Service Award

The unopposed motion for attorneys' fees, costs, and service award is granted as noted above. Attorneys' fees are awarded in the amount of \$241,425, costs are awarded in the amount of \$13,100.95, and service awards of \$2,000 are awarded for each of the five plaintiffs for a total of \$10,000.

9. **S-CV-0050894 Kaur, Jasneet v. Singh, Malwinder**

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Adjudicate and Enforce Attorney's Charging Lien

Attorneys Real Estate Group, APC ("AREG"), former counsel for defendant Malwinder Singh, moves the court for an order adjudicating and enforcing its attorney's charging lien in the amount of \$63,208.80. Defendant Singh opposes the motion.

AREG presents evidence it entered into a written engagement agreement with defendant on September 12, 2022 and that the agreement included a charging lien agreement. AREG presents evidence defendant had payment lapses in 2024 and made only three payments in 2025 and currently owes them \$63,208.80. AREG filed a notice of lien for attorney's fees in this action on December 5, 2025. For clarity, AREG is not a party to this action.

In support of its motion, AREG cites to *Carroll v. Interstate Brands Corp.* (2002) 99 Cal.App.4th 1168 for the proposition that a charging lien may be adjudicated and enforced by motion in the underlying action once there is recovery. However, this is not the holding of the *Carroll* court. The *Carroll* court provides that the court in the underlying action has no jurisdiction to determine the existence or validity of an attorney's lien and the court acts in excess of its jurisdiction if it purports to do so. Under *Carroll* and other applicable authority, this court has no jurisdiction over a fee dispute involving an agreement between a party in the action and the attorney to that party and such a contractual lien must be enforced in an independent action. (*Law Offices of Stanley J. Bell v. Shine, Browne & Diamond* (1995) 36 Cal.App.4th 1011, 1019–20.) Also, "the practice of filing a notice of lien in a pending action is permissible, and even advisable. . . . However, . . . an independent action is required to establish the existence and the amount of the lien and to enforce it. [Citation.]" (*Valenta v. Regents of Univ. of Cal.* (1991) 231 Cal.App.3d 1465, 1470.) Based on the foregoing, the motion is denied.

Defendant also argues the attorney lien is unenforceable for a number of reasons. However, as this court lacks jurisdiction to consider the validity and enforceability of the lien, this court in this action cannot and does not comment on the enforceability of the lien.

Defendant's request for attorneys' fees pursuant to Code of Civil Procedure section 128.5 is denied because the request is not brought by separately noticed motion nor does it comply with the safe-harbor provision.

Defendant's request to expunge the lien is denied without prejudice as the issue is not properly before this court. (*Valenta v. Regents of Univ. of Cal.*, *supra*, 231 Cal.App.3d at p. 1470.)

10. S-CV-0051463 Lincoln Hills v. Sun City Lincoln Hills

Review Hearing

Appearance of the parties is required on **June 23, 2026 at 8:30 a.m. in Department 20** before the **Honorable Angus Saint-Evens**. Department 20 is located at 10820 Justice Center Drive, Roseville, California 95678.

11. S-CV-0051751 Ghaffari-Monazzah, Parto v. Lee West, Christa

Petition for Approval of Compromise of Claim of Proceeds of Judgment for Minor

The petition for approval of minor's compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)

12. S-CV-0052071 Mustain, William v. Johnson, Richard Wayne

Motion for Final Approval

The unopposed motion is granted. The court has broad discretion to determine whether a class action settlement is fair, adequate, and reasonable. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.) When reviewing the fairness of the settlement, the court is to give due regard to the parties' agreement, ensuring that the agreement is not a product of fraud, overreaching parties, or collusion and that the settlement, as a whole, is fair, reasonable, and adequate. (*7-Eleven Owners for Fair Franchising v. Southland Corp.* (2000) 85 Cal.App.4th 1135, 1145.) A presumption of fairness exists where: (1) the settlement was reached through arms-length bargaining; (2) the investigation and discovery were sufficient to allow class counsel and the court to act intelligently; (3) class counsel is experienced in similar litigation; and (4) there is a small percentage of objectors. (*Ibid.*)

Further, the court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Lab. Code, § 2699, subd. (I); *O'Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*O'Connor, supra*, 201 F.Supp.3d at p. 1120.)

The court has carefully reviewed and considered the class action and PAGA action settlement agreement and plaintiff's moving papers and declarations submitted in support thereof. The court determines a sufficient showing has been made that the settlement, the attorneys' fees, costs, and the service award is fair, adequate, and reasonable. The court further determines a sufficient showing has been made that the settlement is fair, reasonable, genuine, meaningful, and consistent with the purpose of PAGA.

The court grants final approval of the class action and PAGA action settlement and approves the attorneys' fees, costs, and the service award.

The court retains jurisdiction over the parties to enforce the terms of the judgment. (Cal. Rules of Court, rule 3.769, subd. (h).)

The court schedules this matter for a final accounting hearing on **November 17, 2026 at 8:30 a.m. in Department 32**. Plaintiff shall file and serve a final accounting status report by no later than November 3, 2026.

13. S-CV-0052591 Germany, Steven E v. Bains, Jazmin

Motion for Summary Judgment

Defendants Sutter Valley Hospitals dba Sutter Roseville Medical Center (erroneously sued as Sutter Roseville Medical Center Foundation) and Sutter Health (collectively, "SRMC") move the court for summary judgment or, in the alternative, summary adjudication of plaintiffs' complaint pursuant to Code of Civil procedure section 437c. Plaintiffs oppose the motion.

Preliminary Matters

Defendants object by way of reply brief to the declaration of plaintiff Steven E. Germany filed together with the opposition brief on May 27, 2026. However, as defendants' objection does not comply with Rule 3.1354 of the California Rules of Court, the objection is overruled.

Plaintiffs submitted a supplemental declaration of plaintiff Steven E. Germany on June 5, 2026—after the briefing period for any opposition had already expired. (Code Civ. Proc., § 437c, subd. (b)(2).) Defendants object to the court considering the supplemental declaration. The court sustains the objection and does not consider plaintiffs' supplemental declaration.

Ruling on the Motion

A party is entitled to bring a motion for summary judgment where there are no triable issues of fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) The defendant bears the initial burden of establishing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (*Id.* subd. (p)(2).) Only when this initial burden is met does the burden shift to the opposing party to show a triable issue of material fact. (*Ibid.*) A party may move for summary adjudication as to one or more causes of action if the party contends the cause of action has no merit. (*Id.* subd. (f)(1).) A party may move for summary adjudication as an alternative to summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (*Id.* subd. (f)(2).) In reviewing a

motion for summary judgment, the court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) The court reviews the motion with these principles in mind.

Defendants present evidence that on January 18, 2023, Wren Germany (“Mr. Germany”) was presented to the Sutter Roseville Medical Center Emergency Department complaining of weakness and shortness of breath. (SSUMF No. 2.) Dr. Arthur Jey evaluated Mr. Germany, a 96-year-old man with a history of hypertension, chronic kidney disease stage 3, chronic atrial fibrillation on Coumadin, diabetes mellitus type 2, congestive heart failure, and osteoarthritis. (SSUMF Nos. 3, 6.) Dr. Jey ordered a CT with contrast, which showed a possible left small pulmonary embolism, and admitted Mr. Germany. (SSUMF Nos. 4, 54.) Dr. Jazmin Bains observed the first CT was unclear as to pulmonary embolism and on January 20, 2023, ordered a second CT with contrast, which showed possible pulmonary embolism. (SSUMF Nos. 16, 26, 55–56.) Mr. Germany thereafter suffered CT contrast-induced nephropathy. (SSUMF Nos. 26, 31.)

Throughout Mr. Germany’s admission (from January 19 through 26, 2023), his vital signs were documented several times throughout each day; medication was administered numerous times throughout each day; Mr. Germany was described as awake, alert, and generally oriented; and his lab results included rising levels of creatinine. (SSUMF Nos. 7–10, 12–15, 17–20, 22–25, 27–30, 33–36, 39–42, 47–50.) Nursing staff and the attending physicians noted Mr. Germany was experiencing no pain generally or no chest pain specifically on January 19, 20, 21, 22, 23, and 26, 2023, although discomfort was noted on January 19, 2023. (SSUMF Nos. 7–8, 11, 13, 18, 21–23, 27–28, 47–48.) However, on January 24, 2023, nursing notes refer to morning and nighttime pain relieved by medication and in the early hours on January 25, 2023, Fentanyl was ordered to address Mr. Germany’s pain and nursing notes indicate pain is improving after medication. (SSUMF Nos. 34, 40, 44.)

On January 20, 2023, the attending physician noted CT imaging concerning for possible pulmonary embolism and that Mr. Germany continued to experience shortness of breath. (SSUMF No. 16.) The next day, the attending physician noted imaging that showed distal pulmonary embolism and that Mr. Germany was feeling well but tired. (SSUMF No. 21.) On January 22, 2023, the attending physician noted a new pulmonary embolism per chest imaging and possible CT contrast-induced nephropathy and spoke with a nephrologist to create a treatment plan including more fluids and to administer Heparin. (SSUMF No. 26.) On January 23, 2023, the attending physician noted acute kidney injury due to contrast nephropathy and that Mr. Germany remained on the Heparin drip through January 25, 2023. (SSUMF Nos. 31, 44.) On January 24, 2023, a nephrologist indicated that Mr. Germany’s breathing had improved and that the thoracentesis had removed 1.1 liter of fluid; the attending physician noted continued worsening of renal function. (SSUMF Nos. 37–38.) On January 26, 2023, Mr. Germany was discharged home with plans for hospice. (SSUMF No. 53.)

Mr. Germany consented to the advisement that “all physicians . . . are not employees or agents of the Hospital” and all physicians involving care “are not employees or agents of the Hospital” orally on January 18, 2023, October 9, 2022, and April 14, 2022; and in writing on August 12, 2022, January 6, 2018, and July 7, 2015. (SSUMF Nos. 57–59.) Mr. Germany consented to the advisement that “all physicians . . . are independent contractors and are not employees or agents of the Hospital” on December 19, 2011, June 2, 2011, December 10, 2008, November 19, 2007, August 11, 2006, November 18, 2005, and November 7, 2005. (SSUMF No. 60.)

In their first and second issues, defendants contend plaintiffs’ claims fail because defendants’ nursing staff met the standard of care and that the standard of care does not require defendants to have a policy preventing contrast-induced nephropathy or a policy prohibiting physicians from ordering contrast CT scans. These arguments rely on facts not included in the separate statement. These two arguments rely primarily on the declarations of Nurse Stephanie Iseri and Nurse Kathryn Biasotti, neither of whom are mentioned in the separate statement, nor are their expert opinions. A separate statement shall “set[] forth plainly and concisely all material facts that the moving party contends are undisputed. . . . The failure to comply with this requirement of a separate statement may in the court’s discretion constitute a sufficient ground for denying the motion.” (Code Civ. Proc., § 437c, subd. (b)(1).) While the court is not precluded from considering evidence outside of the separate statement, it is under no obligation to do so. (See *San Diego Watercrafts, Inc. v. Wells Fargo Bank, N.A.* (2002) 102 Cal.App.4th 308, 315 [holding the question of whether to consider evidence not referenced in a separate statement rests with the sound discretion of the trial court].) The court declines to consider evidence outside of the parties’ respective separate statements for consideration of this motion. As to the first two issues, defendants fall short of their initial burden. Even if defendants had met their initial burden on their first and second issues, the outcome would still be the same because plaintiffs demonstrate one or more triable issues of material fact. (AMF Nos. 21, 22, 24, 25, 27–39.)

In their third and final issue, defendants contend they owe no vicarious duty to plaintiffs for the alleged malpractice of physicians because physicians were not defendants’ employees or agents. While defendants present evidence that Mr. Germany was advised numerous times that the physicians at Sutter Roseville Medical Center were not agents or employees of Sutter Roseville Medical Center (SSUMF Nos. 57–60), defendants submit no evidence that physicians are not in fact their agents or employees. Accordingly, defendants fall short of their initial burden on the third issue as well.

Based on the foregoing, the motion for summary judgment is denied and the motion for summary adjudication is denied.

14. S-CV-0053177 Candland, Larry v. City of Lincoln

Motion for Summary Judgment

Defendant City of Lincoln moves for summary judgment of plaintiff's complaint contending entitlement to judgment because the doctrine of primary assumption of the risk bars plaintiff's recovery because potholes are an inherent risk of road cycling. Plaintiff opposes the motion.

The motion for summary judgment is granted. A party is entitled to bring a motion for summary judgment where there are no triable issues of fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) The defendant bears the initial burden of establishing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (*Id.* subd. (p)(2).) Only when this initial burden is met does the burden shift to the opposing party to show a triable issue of material fact. (*Ibid.*) In reviewing a motion for summary judgment, the trial court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) The court reviews the motion with these principles in mind.

Defendant presents evidence that plaintiff was an experienced cyclist with at least 20 years of experience who rode close to 100 miles per week. (SSUMF Nos. 1–4.) On July 27, 2023, plaintiff went on bike ride with his cycling group from Moo Moo's Burger in Rocklin to Simple Pleasures in Lincoln, a route plaintiff had ridden several times before. (SSUMF Nos. 12, 15, 17, 18.) Plaintiff was riding in the bicycle lane heading northbound on East Avenue in Lincoln but left the bicycle lane to turn westbound onto 5th Street. (SSUMF Nos. 19, 20.) Shortly after turning, plaintiff struck a pothole on 5th Street (9 to 18 inches wide and 4 to 8 inches deep) while traveling approximately 12 to 15 miles per hour. (SSUMF No. 22, 24.) Where the accident occurred, there was a bicycle lane on 5th Street, but plaintiff was in the traffic lane. (SSUMF Nos. 22, 23.) The City of Lincoln had never received a complaint or report about an accident associated with the pothole and was unaware of any prior accidents involving the pothole. (SSUMF No. 25.)

Defendant contends it is entitled to judgment as a matter of law due to the primary assumption of the risk doctrine. The doctrine of primary assumption of the risk negates a duty owed and bars liability for personal injuries when an activity includes inherent risks and an individual is injured as a result of one of those inherent risks. (*Cheong v. Antablin* (1997) 16 Cal.4th 1063, 1068; *Knight v. Jewett* (1992) 3 Cal.4th 296, 313, 314–15.) Determining whether the doctrine of primary assumption of the risk applies is a question of law. (*Moser v. Ratinoff* (2003) 105 Cal.App.4th 1211, 1217.) Primary assumption of the risk has been applied to recreational cycling. (*Moser v. Ratinoff* (2003) 105 Cal.App.4th 1211, 1215 [applying the doctrine to an organized, long-distance bicycle ride on public highways involving hundreds of participants]; *Williams v. County of Sonoma* (2020) 55 Cal.App.5th 125 [applying the doctrine to recreational cycling as part of training for an organized, noncompetitive, long-distance ride].) Primary assumption of

the risk acts as a complete defense provided the defendant did not engage in conduct that unreasonably increased the risks inherent in the sport or that would pose a hazard to foreseeable users outside of the primary assumption of the risk doctrine: “driving, riding a motorcycle, and bicycling as a means of transportation.” (*Williams, supra*, at pp. 130–32.)

Defendant’s evidence shows plaintiff was participating in the sport of recreational road cycling when the incident occurred. (SSUMF Nos. 12, 15, 17–20, 22, 24.) Defendant provides evidence by way of expert testimony that encountering potholes is an inherent and common occurrence of recreational road bicycling. (Bretting Decl., ¶ 13.)

Accordingly, the primary assumption of the risk doctrine applies and acts as a complete defense provided defendant did not engage in conduct that unreasonably increased the risks inherent in the sport or that would pose a hazard to other foreseeable users of the roadway. (*Williams, supra*, 55 Cal.App.5th at pp. 130 – 32.) There is no evidence defendant knew or should have known about this pothole prior to this incident (SSUMF No. 25), nor is there any evidence that defendant did anything to increase the risk inherent in recreational road cycling. Defendant submits expert testimony that this pothole would not pose a hazard to four-wheeled vehicles or motorcycles due to the shape of the pothole, the condition of its edges, and how traffic would interact with the pothole. (Neuman Decl., ¶ 9.) Defendant meets its initial burden of showing the primary assumption of the risk doctrine applies and acts as a complete defense against plaintiff’s claim.

The burden therefore shifts to plaintiff to show one or more triable issues of material fact. Towards that end, plaintiff submits a response to defendant’s separate statement, which presents some argument as to some of defendant’s facts but does not dispute any of defendant’s facts with evidence. Plaintiff also submits a separate statement of additional material facts (“SSAMF”) relying heavily on his declaration about the incident. While plaintiff did not submit any expert testimony, plaintiff presents evidence this pothole was not a minor crack or ordinary roadway irregularity and was larger and deeper than those he had commonly encountered while riding on public roads. (SSAMF Nos. 2, 3.) Plaintiff also presents evidence that immediately before the incident, he was riding in a portion of the roadway commonly used by cyclists traveling city streets, he was looking ahead and paying attention to the roadway, and he was not racing or participating in a competitive cycling event. (SSAMF Nos. 5, 8.) While these are additional facts pertaining to the incident, they fall short of disputing the issue of defendant’s duty and the application of the primary assumption of the risk doctrine. Plaintiff therefore falls short of his burden of showing one or more triable issues of material fact.

Based on the foregoing, defendant’s motion for summary judgment is granted.

15. S-CV-0054113 Christenson, Kyle D v. Auburn CDJR

Defendant’s motion for judgment on the pleadings is continued to **July 7, 2026, at 8:30 a.m. in Department 32.**

16. S-CV-0054631 Ptak, Crystal v. Thomas, Kira Elena

Counsel is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Be Relieved as Counsel

Counsel Leah Kestrel Finke's unopposed motion to be relieved as counsel for plaintiffs Crystal Ptak and Oliver Jouin is denied without prejudice. Counsel submitted a notice of motion, an attached memorandum of points and authorities, a declaration of counsel in support thereof, and a proposed order. However, these documents were not on Judicial Council forms MC-051, MC-052, and MC-053, which are mandatory Judicial Council forms.

17. S-CV-0055435 Jacobs, Adam v. Ameen, Niran

Motion to Compel

Plaintiff moves to compel defendant Anwar Ameen to serve verified, complete, and Code-compliant responses to plaintiff's requests for production of documents, set one, numbers 1 through 8. (Code Civ. Proc., § 2031.300.) Plaintiff also requests monetary sanctions of \$1,060. Defendant opposes the motion and presents evidence that defendant served verified amended responses on March 18, 2026 and verified second amended responses on March 31, 2026. Both of these supplemental responses were after the motion was filed but before defendant's time to oppose the motion had passed. Plaintiff acknowledges receipt of both sets of verified responses in his reply. Accordingly, the motion to compel responses is denied as moot. Plaintiff's request for monetary sanctions is likewise denied.

Motion for Sanctions

Plaintiff moves for an order imposing sanctions under Code of Civil Procedure section 128.7 and 128.5 against defendant Anwar Ameen and defense counsel Owais M. Bari, arguing that defendant's opposition to the motion to strike answer and supporting documents filed February 256, 2026 was for an improper purpose. Defendants oppose the motion.

Code of Civil Procedure section 128.5(a) allows the court to order a party, the party's attorney, or both to pay reasonable expenses, including attorney's fees, incurred as a result of bad faith actions or tactics that are frivolous or solely intended to cause unnecessary delay. "Actions or tactics" include the making or opposing of motions. (Code Civ. Proc., § 128.5, subd. (b)(1).) "Frivolous" is defined as "totally and completely without merit or for the sole purpose of harassing an opposing party." (Code Civ. Proc. § 128.5, subd. (b)(2).) Sanctions under Code of Civil Procedure section 128.5 require compliance with the Safe Harbor Provision, which provides a motion for sanctions "shall not be filed with or presented to the court, unless 21 days after the service of the motion

. . . , the challenged action or tactic is not withdrawn or appropriately corrected.” (Code Civ. Proc., § 128.5, subd. (f)(1)(B).)

When an attorney or unrepresented party submits to the court a motion or other document, they certify to the court (1) the document is not presented primarily for an improper purposes, (2) the contentions therein are warranted by existing law, (3) the factual contentions have or are likely to have evidentiary support, and (4) the denials of factual contentions are warranted on the evidence or reasonably based on a lack of information or belief. (Code Civ. Proc., § 128.7, subd. (b).) “If, after notice and a reasonable opportunity to respond, the court determines that [one of the above four bases] has been violated, the court may[] . . . impose an appropriate sanction upon the attorneys, law firms, or parties . . . responsible for the violation.” (*Id.* subd. (c).) Sanctions under Code of Civil Procedure section 128.7 require compliance with the Safe Harbor Provision, which provides a motion for sanctions “shall not be filed with or presented to the court unless, within 21 days after service of the motion, or any other period as the court may prescribe, the challenged paper, claim, defense, contention, allegation, or denial is not withdrawn or appropriately corrected.” (Code Civ. Proc., § 128.7, subd. (c)(1).)

Here, while plaintiff states that the motion was served on defendants on April 8, 2026, plaintiff presents no evidence he served the motion on April 8, 2026. Accordingly, there is insufficient evidence of compliance with the safe harbor provisions outlined in Code of Civil Procedure sections 128.5(f)(1)(B) and 128.7(c)(1). Due to this procedural deficiency, the motion is denied.

Even if plaintiff had shown compliance with the safe harbor provisions, the motion would still be denied. It cannot be said that the opposition to the motion to strike filed February 25, 2026 is totally and completely without merit or evidentiary support or was filed for the sole purpose of harassing an opposing party or another improper purpose.

Based on the foregoing, the motion is denied.

Motion to Consolidate

The motion to consolidate is dropped from calendar as no moving papers were filed with the court.

18. S-CV-0055656 Alizadeh, Kobra v. Barrett Daffin Frappier Treder & Weiss

Moving Party is advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendant Wells Fargo, N.A.’s Motion for Judgment on the Pleadings

Defendant Wells Fargo, N.A.’s request for judicial notice is granted.

Defendant Wells Fargo, N.A. moves for judgment on the pleadings. Plaintiffs oppose the motion and request to file an amended complaint.

“A motion for judgment on the pleadings is the functional equivalent of a general demurrer.” (*Spencer v. City of Palos Verdes Estates* (2023) 88 Cal.App.5th 849, 861.) As such, the grounds for the motion for judgment on the pleadings must appear on the face of the complaint and any judicially noticeable documents. (*Ibid.*) Further, the court must accept as true all material factual allegations in the complaint. (*Ibid.*) The court may take judicial notice of a defendant’s uncontroverted admissions in responses to request for admissions or interrogatories. (*Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 485; *see also Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549, disapproved on other grounds in *Black Sky Capital LLC v. Cobb* (2019) 7 Cal.5th 156.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Spencer*, 88 Cal.App.5th at 861.)

Defendant Wells Fargo, N.A. brings the motion on the basis the complaint fails to state facts sufficient to constitute a cause of action. (Code Civ. Proc. § 438(c)(1)(B)(ii).) (Mot. J. Pleadings at 2.) Plaintiffs agree their second cause of action under the HBOR is defective, and indicate they will not proceed on that claim. Plaintiffs request leave to amend to allege a variety of additional claims, including wrongful foreclosure, negligent loan servicing, negligent misrepresentation, promissory estoppel, and unfair business practices.

Defendant’s motion is granted. (Code Civ. Proc., §§ 473, (a)(1), 576.) The motion is granted without leave to amend as to the second cause of action under the HBOR. The motion is granted with leave to amend as to the first and third causes of action. Plaintiffs’ implied request to amend to add additional causes of action beyond the scope of defendant’s motion is denied without prejudice to plaintiffs bringing a noticed motion for leave to file an amended complaint.

Plaintiffs shall file and serve the amended complaint **on or before July 6, 2026**.

19. S-CV-0055661 Ronketty, David v. Mitchell, Dia

The moving party is advised the notice of a motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Plaintiff’s motion to strike portions of defendant’s answer

Plaintiff moves to strike portions of defendant’s answer. Defendant did not file a response.

Meet and Confer

Code of Civil Procedure section 435.5 requires that “[Before filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person, by telephone,

or by video conference with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike.” (Code Civ. Proc., § 435.5 (a).) There is no evidence in the record that this requirement has been satisfied. The court admonishes the moving party to comply with meet and confer requirements. (Placer County Local Rules, Rule 20.2.1; Code Civ. Proc., § 435.5.) Nevertheless, as the motion is unopposed, the court will proceed with the merits.

Background

On July 17, 2025, plaintiff filed a complaint, alleging breach of contract, common counts (alleging owing \$29,400), fraud, embezzlement, breach of fiduciary duty, negligence, conversion, and intentional infliction of emotional distress. (Pl. Compl. at 1, 3-7.)

Legal Standard

The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: Strike out any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436 (a).)

The statement of any new matter in the answer, in avoidance or constituting a defense, shall, on the trial, be deemed controverted by the opposite party. Code Civ. Proc., § 431.20 (b).

“It is the duty of a defendant to plead matters which are not provable under a general or specific denial but which avoid the action or at least the theory outlined in the complaint. If the burden of proof is thrown upon the defendant, [Code Civ. Proc. § 431.30], the matter pleaded comes under the general heading of new matter, which must be proved with the purpose of defeating plaintiff's case. *Dieterle v. Bekin* (1904) 143 Cal. 683, 688-89. Whether defendants failed to prove the new matter is a question to be determined by the trial court.” *Gularte v. Martins* (1944) 65 Cal.App.2d 817, 820-21.

Analysis

Answer

As the defendant may plead matters which are not provable under a general or specific denial, but which avoid the action or at least the theory outlined in the complaint, the court will only strike the references that would not fall under any theory of defense. Thus, the court does not see the relevance to a defense or theory of the defendant's case for the following statements in the answer:

“nor should he have been using drugs while under home arrest.” (Def. Answer, pg. 1, ¶ 3b.)

“Additionally, Mr. Ronketty submitted a false renters claim and received \$5000.00. He

did not possess any of the items he listed on the loss form he submitted to the adjuster. Furthermore, Mr. Ronketty is involved in another fraudulent insurance claim, alleging that he was abused by a priest and has joined a class action lawsuit that is expected to pay him over \$200,000. Mr. Ronketty is a thief who profits from making false insurance claims and selling illegal drugs.” (Def. Answer, pg. 2, ¶ 4.)

Declaration

Plaintiff alleges the Marcus Malloy declaration contains hearsay, character attacks, and statements addressing matters unrelated to the causes of action pled in the complaint. As the defendant may plead matters which are not provable under a general or specific denial, but which avoid the action or at least the theory outlined in the complaint, the court will only strike the references that would not fall under any theory of defense. Marcus Malloy alleges to have personal knowledge of facts relevant to this case. Therefore, plaintiff’s motion to strike the Marcus Malloy declaration is denied.

Conclusion

In summary, plaintiff’s motion to strike portions of defendant’s answer is granted, in part. The court orders the lines of defendant’s answer, quoted above, stricken from the record.

20. S-CV-0056317 Nonhprasith, Phonesavanh Lee v. US Bank

Defendants are advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Special Motion to Strike

Defendant John P. Ward moves to strike the first amended complaint, arguing the quiet title claim against him arises from protected activity within the meaning of Code of Civil Procedure section 425.16.

Preliminarily, this motion is effectively unopposed. While plaintiff filed an opposition on April 8, 2026 arguing that this action is subject to an automatic bankruptcy stay, the court issued a ruling on April 21, 2026 noting that an automatic bankruptcy stay applies to actions “against the debtor,” which would not apply to a plaintiff in an action. The court set aside the notice of bankruptcy stay and continued the hearing to permit plaintiff the opportunity to file an opposition. On June 8, 2026, plaintiff filed substantively the same opposition as it had on April 8, 2026, not acknowledging the court’s April 21, 2026 order. As no bankruptcy stay is in place and as plaintiff has had ample opportunity to oppose on the merits and has elected not to, this court will reach the merits of this motion and treat it as effectively unopposed.

Defendant’s request for judicial notice is granted.

A motion brought under Code of Civil Procedure section 425.16, also known as an anti-SLAPP motion, is a procedural remedy designed to dispose of lawsuits that are brought primarily to chill the valid exercise of a party's constitutional right of petition or free speech. (Code Civ. Proc., § 425.16, subd. (a); see also *Sylmar Air Conditioning v. Pueblo Contracting Svcs., Inc.* (2004) 122 Cal.App.4th 1049, 1055–56.) The court may strike individual allegations that constitute protected activity and is not limited to striking entire causes of action. (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 396.) In determining whether an action or claim is a SLAPP suit subject to a special motion to strike, the court evaluates first whether the claim arises out of the defendant's protected speech or petitioning activity. Only if the claim arises out of defendant's protected speech or petitioning activity does the court move on to the second prong, to evaluate whether plaintiff can show a probability of success on the merits. (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88–89.) Defendant has the burden of proof to show that plaintiff's claims arise from defendant's exercise of free speech or petition rights as defined in Code of Civil Procedure section 425.16(e). (*Equilon Enterprises, LLC v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 61.) Such protected speech includes:

(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.

(Code Civ. Proc., § 425.16, subd. (e).) “[C]ommunications preparatory to or in anticipation of the bringing of an action” are also protected petitioning activity. (, e.g., *Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1115; Civ. Code, § 47, subd. (b).) If defendant makes a prima facie showing that the cause of action at issue arises from her constitutionally protected free speech or petition activity, the burden shifts to plaintiff to establish a probability of prevailing on the claim. (*Governor Gray Davis Committee v. American Taxpayers Alliance* (2002) 102 Cal.App.4th 449, 458–59.)

Defendant Ward contends plaintiff's complaint for quiet title is based solely upon communications he sent as an attorney on behalf of his client Velocity Commercial Capital, LLC (“Velocity”) in anticipation of litigation. Defendant presents evidence that on July 13, 2021, plaintiff obtained a loan from Velocity in the amount of \$474,000. (RJN Exh. 1.) Plaintiff defaulted on the loan in 2025, prompting recordation of a notice of default and election to sell. (RJN Exh. 2.) On January 10, 2025, Velocity received a letter from plaintiff that referenced litigation. (Ward Decl., Exh. 3.) In anticipation of litigation, Velocity retained defendant Ward to respond to the letter. (Ward Decl., ¶ 3.) On January 15, 2025, defendant Ward drafted and mailed a letter in to plaintiff advising “This firm represents Velocity” and advising plaintiff to direct all future correspondence to him. (Ward Decl., Exh. 4.) On September 22, 2025, Velocity received a second letter from plaintiff indicating imminent litigation. (Ward Decl., Exh. 5.) Defendant Ward

again responded by letter. (Ward Decl., Exh. 6.) Ward has not asserted any claim to the property and none of the recorded documents have his name. (Ward Decl., ¶ 9; RJN Exhs. 1, 2.) Defendant meets his initial burden on the first prong.

The burden therefore shifts to plaintiff to show a probability of success on the merits. As this motion is unopposed, plaintiff falls short of this burden.

Based on the foregoing, the special motion to strike is granted as to defendant Ward.

Defendant Ward requests attorneys' fees in the amount of \$5,400 pursuant to Code of Civil Procedure section 425.16(c)(1). However, attorneys' fees are not mentioned in the notice of motion. Accordingly, the request is denied without prejudice and defendant Ward may seek an award of attorneys' fees and costs pursuant to Section 425.16(c)(1) by separately noticed motion.

Demurrer to the First Amended Complaint

Defendants Sandie Lawrence, Christopher D. Farrar, Roland T. Kelley, and John P. Ward demur to the first amended complaint filed November 6, 2025 contending the pleading fails to state facts sufficient to constitute a cause of action and the complaint is uncertain and unintelligible pursuant to Code of Civil Procedure section 430.10(e) and (f).

Preliminarily, this demurrer is effectively unopposed. While plaintiff filed an opposition on April 8, 2026 arguing that this action is subject to an automatic bankruptcy stay, the court issued a ruling on April 21, 2026 noting that an automatic bankruptcy stay applies to actions "against the debtor," which would not apply to a plaintiff in an action. The court set aside the notice of bankruptcy stay and continued the hearing to permit plaintiff the opportunity to file an opposition. On June 8, 2026, plaintiff filed substantively the same opposition as it had on April 8, 2026, not acknowledging the court's April 21, 2026 order. As no bankruptcy stay is in place and as plaintiff has had ample opportunity to oppose on the merits and has elected not to, this court will reach the merits of this demurrer and treat it as effectively unopposed.

The demurrer is moot as to defendant John P. Ward in light of the court's above ruling on defendant Ward's special motion to strike. The court will reach the merits of the demurrer as it pertains to the other three demurring defendants.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action or where the pleading is uncertain. (Code Civ. Proc., § 430.10, subds. (e), (f).) A pleading is "uncertain" if it is ambiguous and unintelligible. (*Id.* at subd. (f).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court

may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

A verified complaint for quiet title shall include all following elements:

- (a) A description of the property that is the subject of the action. In the case of tangible personal property, the description shall include its usual location. In the case of real property, the description shall include both its legal description and its street address or common designation, if any.
- (b) The title of the plaintiff as to which a determination under this chapter is sought and the basis of the title. If the title is based upon adverse possession, the complaint shall allege the specific facts constituting the adverse possession.
- (c) The adverse claims to the title of the plaintiff against which a determination is sought.
- (d) The date as of which the determination is sought. If the determination is sought as of a date other than the date the complaint is filed, the complaint shall include a statement of the reasons why a determination as of that date is sought.
- (e) A prayer for the determination of the title of the plaintiff against the adverse claims.

(Code Civ. Proc., § 761.020.)

The court has carefully reviewed the first amended complaint. While it sufficiently alleges a description of the property and a prayer for the determination of plaintiff's title, it does not otherwise satisfy the pleading requirements outlined in Section 761.020. The demurrer is sustained on this basis. (Code Civ. Proc., § 430.10, subd. (e).) Moreover, the lack of factual allegations as to plaintiff's title and any adverse title claimed by any of the named defendants also renders the complaint uncertain within the meaning of Code of Civil Procedure section 430.10(f). The demurrer is also sustained for this reason.

Plaintiff is afforded leave to amend. A second amended complaint, if any, shall be filed and served by July 6, 2026.

Case Management Conference

The court on its own motion schedules this matter for a Case Management Conference on **September 25, 2026 at 9:00 a.m. in Department 1**. Department 1 is located at 101 Maple Street, Auburn, California 95603.

21. S-CV-0056603 Shaffer, Christopher T v. Hyundai of Roseville

The moving party is advised the notice of a motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendants' Motion to Compel Arbitration and Motion to Stay

Defendants Hyundai of Roseville LLC; Hyundai of Folsom, LLC; Hyundai of Elk Grove, LLC; and R&A Elk Grove HY RE, LLC move to compel arbitration and to stay proceedings. Plaintiff opposes this motion.

Facts in pleadings

On November 19, 2025, plaintiff filed a complaint alleging 1. breach of voluntary express trust and imposition of constructive trust 2. breach of fiduciary duty 3. conversion 4. accounting, inspection, and damages 5. declaratory relief. (Pl. Compl.)

On November 4, 2005, plaintiff signed an employee acknowledgment and agreement (2005 agreement) with Hyundai of Roseville, which included an agreement to arbitrate disputes arising from his employment. (Defs. Mot. Compel, Kolb Decl. ¶ 4, Exh. A). The 2005 agreement states:

“[B]oth the Dealership and I agree that any claim, dispute, and/or controversy (including, but not limited to ...claims of discrimination and harassment, whether they be based on the California Fair Employment and Housing Act, Title VII of the Civil Rights Act of 1964, as amended, as well as all other state or federal laws or regulations) that either I or the Dealership (or its owners, directors, officers, managers, employees, agents, and parties affiliated with its employee benefit and health plans) may have against the other which would otherwise require or allow resort to any court or other governmental dispute resolution forum arising from, related to, or having any relationship or connection whatsoever with my seeking employment with, employment by, or other association with the Dealership, whether based on tort, contract, statutory, or equitable law, or otherwise ... shall be submitted to and determined exclusively by binding arbitration under the Federal Arbitration Act, in conformity with the procedures of the California Arbitration Act ... I UNDERSTAND BY VOLUNTARILY AGREEING TO THIS BINDING ARBITRATION PROVISION, BOTH I AND THE DEALERSHIP GIVE UP OUR RIGHTS TO TRIAL BY JURY OF ANY CLAIM I OR THE DEALERSHIP MAY HAVE AGAINST EACH OTHER.”

((Defs. Mot. Compel, Kolb Decl., Ex. A.)

On January 1, 2010, plaintiff signed a formal employment agreement with Hyundai of Roseville and Hyundai of Elk Grove, but that employment agreement did not contain an arbitration agreement. (See Pl. Shaffer Decl., ¶ 11 & Exh. 1 (2010 agreement).)

Plaintiff never signed any arbitration agreement regarding his employment or otherwise with defendants Hyundai of Folsom or R&A Elk Grove HY RE. (See Pl. Shaffer Decl., ¶ 11 & Exh. 1 (2010 agreement); (Defs. Mot. Compel, Kolb Decl. ¶ 4, Ex. A (2005 agreement).) Plaintiff never signed anything relative to his purchase of a percentage ownership interest in defendant R&A Elk Grove HY RE. (See Pl. Shaffer Decl., ¶ 4 & Exh. 1 (2010 agreement); (Defs. Mot. Compel, Kolb Decl., Ex. A (2005 agreement).) Plaintiff alleges he acquired and owns, or should have acquired and owns, a 15% equity interest in the Blue-Sky Value (including goodwill and other intangible assets) of the defendant dealerships. (Pl. Compl. ¶ 16.)

Legal Standard

Section 2 of the Federal Arbitration Act (“FAA”) makes agreements to arbitrate “valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.” (9 U.S.C. § 2.) This provision reflects both a “liberal federal policy favoring arbitration” and the “fundamental principle that arbitration is a matter of contract.” (*AT&T Mobility LLC v. Concepcion*, (2011) 563 U.S. 333, 339.)

A threshold question for any motion to compel arbitration is whether an agreement to arbitrate exists between the parties. (*Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396.) Defendant carries this initial burden of proving, by a preponderance of the evidence, the existence of a valid arbitration agreement. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) A party opposing a motion to compel arbitration then “bears the burden of proving by a preponderance of the evidence any fact necessary to its defense” including evidence challenging the acceptance of the agreement. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842; *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.)

Pursuant to Code of Civil Procedure section 1281.2, a trial court shall order arbitration of a controversy if an agreement to arbitrate the controversy exists, with certain exceptions inapplicable here. California has a strong public policy in favor of arbitration, but “a party cannot be compelled to arbitrate a dispute that he has not agreed to resolve by arbitration.” (*Buckner v. Tamarin* (2002) 98 Cal.App.4th 140, 142.) *Gordon v. Atria Management Co., LLC* (2021) 70 Cal.App.5th 1020, 1026.

Analysis

In support of the motion to compel arbitration, defendants present an employment agreement with an arbitration clause signed in 2005 by plaintiff and only one of the party defendants, Hyundai of Roseville. (Defs. Mot. Compel, Kolb Decl. ¶ 4, Exh. A). This agreement predates the 2010 employment agreement plaintiff signed with Hyundai of

Roseville (which was party to the prior agreement) and Hyundai of Elk Grove (not party to the prior agreement), and the 2010 agreement did not contain an arbitration clause. (See Pl. Shaffer Decl., ¶ 11 & Exh. 1 (2010 agreement).) Plaintiff never signed any arbitration agreement regarding his employment or otherwise with defendants Hyundai of Folsom or R&A Elk Grove HY RE. (See Pl. Shaffer Decl., ¶ 11 & Exh. 1 (2010 agreement); (Defs. Mot. Compel, Kolb Decl. ¶ 4, Ex. A (2005 agreement).) Thus, defendants seek to compel plaintiff to arbitration with a prior agreement that includes only one of the party defendants.

The 2010 agreement contains the following provisions:

We are pleased to present you with this Agreement setting forth the terms and conditions of your continued employment by Hyundai of Roseville, LLC, a Delaware limited liability company (“Roseville Hyundai”) and Hyundai of Elk Grove, LLC, a Delaware limited liability company (“Elk Grove Hyundai”) (collectively, the “Dealerships”). The Dealerships are currently owned by Robert and Alan Potamkin (“Potamkin”).

The Dealerships shall continue to employ you on an at will basis under the following terms and conditions

...

This Agreement sets forth the entire agreement and understanding among the parties superseding all prior understandings and agreements and can be amended only in writing executed by the parties hereto.

(See Pl. Shaffer Decl., Exh. 1 (2010 agreement).)

Under state law, the terms of a final, integrated contract “may not be contradicted by evidence of any prior agreement or of a contemporaneous oral agreement.” (Code Civ. Proc., § 1856, subd. (a).) But a written instrument “may be explained or supplemented by evidence of consistent additional terms unless the writing is intended also as a complete and exclusive statement of the terms of the agreement.” (Code Civ. Proc., § 1856, subd. (b).) “The crucial issue in determining whether there has been an integration is whether the parties intended their writing to serve as the exclusive embodiment of their agreement. The instrument itself may help to resolve that issue.” (*Masterson v. Sine* (1968) 68 Cal.2d 222, 225.) The existence of an integration clause is a key factor in divining that intent. (See *Founding Members of the Newport Beach Country Club v. Newport Beach Country Club, Inc.* (2003) 109 Cal.App.4th 944, 953-54). *Grey v. American Management Services* (2012) 204 Cal.App.4th 803, 807. The parol evidence rule “generally prohibits the introduction of extrinsic evidence—oral or written—to vary or contradict the terms of an integrated written instrument.” (*EPA Real Estate Partnership v. Kang* (1992) 12 Cal.App.4th 171, 175.)

By its plain language, the 2010 agreement between plaintiff, Hyundai of Roseville, and Hyundai of Elk Grove superseded all prior agreements, including the 2005 agreement

between plaintiff and Hyundai of Roseville. As a result, defendants may not compel arbitration by the terms of the 2005 agreement, as the 2010 agreement superseded all prior agreements via an integration clause.

Conclusion

Based on the foregoing, the court denies defendants' motion to compel arbitration of plaintiff's claims and denies defendants' motion to stay the action. Defendants shall file their answer by July 6, 2026.

22. S-CV-0056703 Casebolt Flynt, Elizabeth v. Whitely, Jesse

Defendants' Motion to Strike Portions of Plaintiff's First Amended Complaint

Defendants' motion to strike portions of plaintiff's first amended complaint is dropped as moot in light of the filing of the second amended complaint.

Defendants' Demurrer to Second Amended Complaint

Defendants demur to the third and fourth causes of action alleged in the second amended complaint for negligent misrepresentation and intentional misrepresentation.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10 (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

To state a claim for negligent misrepresentation, plaintiff must allege the following elements: misrepresentation of a past or existing material fact, without reasonable ground for believing it to be true, with intent to induce another's reliance on the fact misrepresented; ignorance of the truth; justifiable reliance on the misrepresentation by the plaintiff; and resulting damage. (*Shamsian v. Atlantic Richfield Co.* (2003) 107 Cal.App.4th 967, 983.) To state a claim for intentional misrepresentation, plaintiff must allege the following elements: a misrepresentation, with knowledge of its falsity, with the intent to induce another's reliance, actual and justifiable reliance, and resulting damage. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1166.)

Negligent and intentional misrepresentation must be pleaded with sufficient particularity that shows "how, when, where, to whom, and by what means the representations were tendered." (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.) Against a corporate

defendant, a plaintiff must also allege the name(s) of the person(s) who made the fraudulent representations and their authority to speak. (*Tenet Healthsystem Desert, Inc. v. Blue Cross of Cal.* (2016) 245 Cal.App.4th 821, 838.)

The demurrer is sustained with leave to amend as to the third and fourth causes of action. Plaintiff fails to allege each element of these claims with requisite specificity. Any amended complaint shall be filed and served on or before July 10, 2026.

23. T-CV-0002801 Kern, Gregory v. Weber, Anne Marie

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Dismiss in Part and to Continue Trial

Plaintiff moves to dismiss defendant Jon G. Jensen from this unlawful detainer action, to continue proceedings against defendant Anne Marie Weber, and to set new trial dates as against defendant Anne Marie Weber.

Plaintiff's motion lacks merit. Plaintiff cites to authorities pertaining to a post-judgment claim of right to possession, which are inapplicable because this case involves a pre-judgment claim of right to possession. Plaintiff argues judicial economy and the public policy behind summary unlawful detainer proceedings would best be served by permitting dismissal of defendant Jensen and permitting the case to proceed against defendant Weber. However, the court questions how two separate and distinct trials could serve judicial economy. The court questions how dismissal of Jensen and trial against Weber could serve the public policy behind unlawful detainer proceedings when the primary purpose of the action—recovery of possession of the premises—would be frustrated by the continued possession of Jensen.

The motion is denied without prejudice. The court schedules this matter for a case management conference on **July 23, 2026, at 9:00 a.m. in Department 3.**
